

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
MD ALAM,

Index No.

Plaintiff,

SUMMONS

-against-

Plaintiff designates
New York County as the place
of trial.

THE CITY OF NEW YORK, BAO TRAN,
Individually

The County for Trial is
based on Defendants
principle place of business

Defendants.

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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your Answer, or if the complaint is not served with the summons, to serve a notice of appearance on Plaintiff's attorney within twenty (20) days after service of this summons, exclusive of the day of service, (or within thirty (30) days after service is complete, if this summons is not personally delivered to you within the State of New York); and in case of your failure to answer, judgment will be taken against you by default for the relief demanded hereto.

Dated: New York, New York
November 2, 2023

Yours, etc.

/s/
John Scola
Law Office of John A. Scola, PLLC
Attorneys for Plaintiff MD ALAM
90 Broad Street, Suite 1023
New York, New York 10004
(917) 423-1445

DEFENDANTS' ADDRESSES

CITY OF NEW YORK
100 Church Street
New York, NY 10007

BAO TRAN
Transit District 32
960 Carroll St, Brooklyn, NY 11225
One Police Plaza

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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MD ALAM,

Plaintiff,

-against-

THE CITY OF NEW YORK, BAO TRAN,
Individually

Defendants.

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Index No.

VERIFIED COMPLAINT

JURY TRIAL DEMAND

The plaintiff, MD ALAM, by his attorneys, the LAW OFFICE OF JOHN A. SCOLA, PLLC, as and for his verified complaint against Defendants' THE CITY OF NEW YORK, and BAO TRAN, Individually,.

INTRODUCTION

This is a civil rights action on behalf of the plaintiff MD ALAM (hereinafter referred to as "plaintiff") for injunctive relief and to vindicate his rights for his denial of employment benefits with the New York City Police Department (hereinafter referred to as "NYPD" by Defendants THE CITY OF NEW YORK (hereinafter referred to as "CITY"), and BAO TRAN (hereinafter referred to as "TRAN"), Individually as a result of their unlawful conduct. More specifically, plaintiff seeks damages related to the deprivation of his rights secured by New York State Executive § 296, and New York City Local Law §8-101 et a. Plaintiff was denied employment benefits on the basis of his race, national origin, religion, and in retaliation for protected complaints of unlawful discrimination.

At all times herein, Plaintiff was a member of a protected class who performed his job duties in a satisfactory manner. Plaintiff was subjected to adverse actions as a result of and in

retaliation for her membership in that protected classes as described below.

PROCEDURAL REQUIREMENTS

1. Plaintiff has filed suit with this Court within the applicable statute of limitations period.
2. This matter was filed on November 2, 2023. With the Covid-19 tolling statute, all claims that occurred on or after March 19, 2023 until the present is within the statute of limitations, without taking into consideration the continual violations doctrine. See *Brash v. Richards*, 195 A.D.3d.582, 149 N.Y.S.3d 560 (2nd Dept. 2021).

PLAINTIFF

3. Plaintiff MD ALAM is a male citizen of the United States of America, over twenty-one (21) years of age, who is a police officer employed by the New York City Police Department.
4. Plaintiff is of Bangladeshi national origin, is Asian and is Muslim.

DEFENDANTS'

5. Defendant THE CITY OF NEW YORK is a municipal corporation organized and existing under and by virtue of the law of the State of New York.
6. Defendant, BAO TRAN, is a former segreant and current police officer Lieutenant in the New York City Police Department is employed by the Defendant CITY OF NEW YORK.
7. At the time of the allegations contained herein, Defendant TRAN was a supervisor of Plaintiff.

FACTUAL ALLEGATIONS

8. Plaintiff joined the New York City Police Department ("NYPD") on October 11, 2016 as a police officer.
9. At all times herein, Plaintiff has excelled in his position as a police officer.

10. After completing the Police Academy, Plaintiff was assigned to Police Service Area (“PSA”) 2 on the day tour.
11. Plaintiff upon arriving at PSA 2 worked on the day tours.
12. Upon arriving at PSA 2 it was clear that Plaintiff was being treated differently than other similarly situated officers.
13. Plaintiff was assigned to assignments that would prevent him from earning activity at the same rate as his white peers.
14. While the disparate assignments started before this time, the assignments complained of herein which caused Plaintiff to have low evaluations which result in the loss of hundreds of thousands of dollars in lost income, occurred after March 2020 and thus within the statute of limitations period.
15. More specifically, as stated previously, an officer is given total score for their annual performance evaluations are based almost exclusively on an officer’s total number of arrests and summonses for a year.
16. Certain assignments make effectuating arrests and issuing summonses much easier than others.
17. These assignments which are much easier for an officer to get their arrest and summonses numbers include, primarily, assignment to patrol.
18. When an officer is on patrol they will be responsible for responding to 911 calls (radio runs) for their entire tour.
19. As a result, this provides the greatest amount of interaction between an officer and potential infractions which most easily allows an officer to meet their numbers.
20. Other assignments make it much more difficult for an officer to earn activity during their

tour.

21. These assignments usually involve an officer being stationed to a sedentary post where they cannot move around and have limited interactions with the public.
22. The assignments include but are in no way limited to foot posts, fixed posts telephone switchboard operator, Omega booth, Critical Response Vehicle, stationhouse security, Hospital transports, or prisoner transports.
23. Plaintiff is assigned patrol at a rate much less than his non-Asian/Muslim peers.
24. The NYPD evaluates officers' activity as compared to their peers.
25. For example, if a police officer had the highest activity compared to their peers they would likely receive the highest evaluation score.
26. Contrarily, if an officer has low activity for a rating period compared to their peers then they would be rated lower.
27. The assignments in a command are supposed to be evenly rotated and based on seniority.
28. As a result of these NYPD custom, each officer in a given command is supposed to work approximately the same number of tours on patrol and non-patrol assignments as everyone else in the command.
29. As a result, the NYPD rarely takes into consideration a police officer officers' assignments when evaluating their activity for a month, quarter, or year.
30. Non-South Asian officers in the PSA 2 Precinct would almost always be assigned patrol during their tours.
31. Non-South Asian, Non-Bangladeshi and non-Muslim police officers who received preferential treatment include but are not limited to officers Nelms, Robinson, Bricca, Kacanski, Kalwa, Hernandez, Rallo, and Figueroa.

32. Plaintiff is on patrol as little as 30% of the time.
33. At all times herein a police officers' race would factor into the assignments they would receive.
34. As a result of these disparate assignments, Plaintiffs were given lower evaluations, placed on performance monitoring, denied the ability to apply for specialized units in the command, denied the ability to apply for specialized units outside the command, denied the ability to be promoted to detective and lost thousands of dollars in lost overtime and pension benefits.
35. Plaintiff as a result of the disparate assignments he received was given negative evaluations in 2020 and 2021.
36. Similarly situated non-Asian/Muslim employees were given higher evaluation scores despite performing at or less than Plaintiff.
37. Additionally, Plaintiff was denied overtime on par with his non-South Asian, Muslim, and Bangladeshi colleagues.
38. In 2021, Plaintiff earned just \$6,298 in overtime.
39. By comparison, white comparator Joseph Bisogno earned \$18,454 in overtime in 2021, \$12,156 more than Plaintiff.
40. White comparator, Police Officer Gregory Bricca, earned \$17,118 in overtime in 2021, \$10,820 more than Plaintiff.
41. White Comparator, Police Officer Dragan Kacanski earned \$17,235 in overtime in 2021, \$10,937 more than Plaintiff.
42. White comparator Vincenzo Rallo earned \$37,189 in overtime in 2021, \$20,549 than Plaintiff.
43. Plaintiff was similarly situated to these white comparators in every material way but for

Plaintiffs race, national origin, and religion.

44. Plaintiff applied for the City-Wide Task Force and Candidate Assessment Division teams in 2021 but was told he was not eligible for the position due to his negative evaluations.
45. These negative evaluations are discriminatory as they are based on disparate assignments which harm Plaintiff due to his race.
46. As a result, Plaintiff is denied the Anti-Crime and Neighborhood Coordinator Officer teams due to his race.
47. The Neighborhood Coordinator Positions were given to less senior police officers Perez (Hispanic), Mendez (Hispanic) and Urchenko (white).
48. The Anti-Crime spots were given to Salguerro (white) and Simmons (Black).
49. These officers are similarly situated to Plaintiff in every way but for their race, national origin, and religion.
50. These officers actually have less time than Plaintiff making them less qualified for the position
51. To highlight the differences in these positions, Simmons, who had a base salary of nearly \$5,000 less than Plaintiff, earned \$11,000 more for the year 2022 due to his race.
52. The discriminatory treatment towards Plaintiff became unbearable in July 2022.
53. Specially, Plaintiff was injured while playing soccer off duty wherein he injured his knee.
54. After he injured his knee, Plaintiff was placed on limited duty while he recovered from his injury.
55. As a result of his limited duty status, Plaintiff was approved for temporary accommodation which included no prisoner contact.
56. Plaintiff was supposed to be assigned to the Telephone Switchboard post or other

assignments that limited his contact with the public due to his injuries.

57. Plaintiff could have been easily accommodated without hardship to the Defendants but they refused to honor the accommodation.

58. Specifically, Defendant TRAN refused to accommodate Plaintiff.

59. Defendant TRAN would purposefully assign Plaintiff to assignments like prisoner transport and cell attendant which required Plaintiff to have physical contact with prisoners.

60. This was in direct contradiction to Plaintiff's accommodation and was done purposefully to harass Plaintiff.

61. When Plaintiff was assigned to the telephone switchboard, an assignment which accommodated Plaintiff he was harassed by Defendant TRAN.

62. When Plaintiff was assigned to be the telephone switchboard operator, he performed the essential functions of this position without hardship on the Defendants.

63. Despite being able to fulfill his role as the telephone switchboard operator and no hardship on the Defendants, Defendant TRAN would only harass Plaintiff due to his race and religion.

64. Specifically, in PSA 2 there were three (3) officers assigned to the telephone switchboard position on a consistent basis.

65. The officers were Plaintiff, a South Asian Muslim Male and Officers Erica Nelms, a white Christian woman and Joseph Bisogno a white Christian Male.

66. These white officers were also being accommodated.

67. Defendant TRAN did not harass the white employee who were assigned to the telephone switchboard.

68. Defendant TRAN only harassed Plaintiff.

69. Specifically Defendant TRAN would tell Plaintiff that "you (Plaintiff) are brown and lazy,"

and “Bangladeshi people do not work.”

70. The comments were not limited to these and occurred on a daily basis for several months.
71. Defendant TRAN would refer to Plaintiff as “Islam” or “Muslim” rather than calling him by his name.
72. This angered Plaintiff as Defendant TRAN was giving him a “hard time” due to his race, religion and national origin.
73. Plaintiff felt powerless against the discriminatory comments of Defendant TRAN.
74. During this period of time, where Plaintiff was consistently referred to as “Islam or “Muslim,” Defendant TRAN would also ignore Plaintiff’s approved accommodation for his injury.
75. Specifically, Defendant TRAN would assign Plaintiff to the assignment of cell attendant which required Plaintiff to clean the prisoner cell and have prisoner contact.
76. Defendant TRAN did not harass the white officers were being accommodated.
77. During the time that Defendant TRAN was harassing Plaintiff, he was too scared to ask to pray while at work out of fear that Defendant TRAN would further harass him.
78. Defendant TRAN would further order Plaintiff to do his work for him and then Defendant TRAN would take credit for the work when it was submitted.
79. Defendant TRAN would have Plaintiff complete his work and then order him to leave it in his box so Defendant TRAN could sign and submit the reports.
80. Plaintiff would then be forced to complete these assignments while sitting to the prisoners holding cell.
81. No other officers were forced to work in the holding cell as it is humiliating.
82. Defendant TRAN did not harass white officers Nelms and or Bisogno in the same manner.

83. In addition, to the harassing name calling, poor evaluations, poor assignments, and lack of overtime, Plaintiff was also subjected to bogus discipline due to his race, national origin, and religion.
84. Specifically, Defendant TRAN negatively craft Plaintiff after he claimed that Plaintiff for allegedly being in the wrong area of the Command after Plaintiff was forced to move because the computer he was assigned was not working,
85. Plaintiff was not given a desk to work like his white colleagues which made his assignments more difficult to complete.
86. Plaintiff would be forced to work in the prisoner cell, as previously mentioned, and forced to work wherever he could find a place to complete his work.
87. On this occasion, Defendant TRAN negatively crafted Plaintiff for no legitimate reason.
88. Plaintiff was working in the cell as he had numerous times before because he did not have a desk and in this situation the computer he was assigned was not working.
89. Plaintiff was disciplined due to his race, national origin, and religion.
90. A negative craft is a reprimand which goes on Plaintiff's permanent NYPD record.
91. Specifically, the discipline is reviewed any time Plaintiff wants to transfer to a lucrative specialized unit.
92. As a result, this fraudulent discipline has negative impacts on Plaintiff's career and have the potential to cost him hundreds of thousands of dollars in lost income.
93. When Plaintiff was issued the command discipline, he was told by Defendant TRAN that he could not leave his desk without prior permission.
94. Fellow telephone switchboard operators Nelms and Bisogno, both white Christians, were allowed to leave their desks without prior permission.

95. The repeated comments continued by Defendant TRAN.
96. Defendant TRAN would tell Plaintiff that he is a “fucking loser” and make comments like “you’re brown” all while continuing to call Plaintiff Islam and Muslim rather than using his name.
97. Plaintiff began to complain to Defendant TRAN about his discriminatory treatment.
98. Plaintiff told Defendant TRAN that he needed to stop discriminating against him.
99. Plaintiff specifically told Defendant TRAN that he did not appreciate the way that he spoke to him, treated him like a criminal, assigned him to the cell and gave him a hard time in a way he did not his non-South Asian, Muslim, and Bangladeshi colleagues.
100. Plaintiff attempted to speak with Defendant TRAN one on one about his discriminatory practices.
101. This angered Defendant TRAN who then told Plaintiff “Let’s go talk about this in front of everyone.”
102. Plaintiff stated that he did not want to speak about this in front of everyone else as it was personal and embarrassing.
103. This further angered Defendant TRAN who continued to try to make Plaintiff repeat what he said in front of his colleagues.
104. When Plaintiff refused, Defendant TRAN stated, “I don’t have to listen to you” and left.
105. Plaintiff again attempted to explain how he was being treated.
106. This incredibly scary to Plaintiff and he was about to cry as he was finally standing up against his abuser Defendant TRAN.
107. Defendant TRAN, despite being a mandated reporter of complaints of discrimination, failed to contact the NYPD’s Office of Equal Employment (“OEEO”) which he was required to

do.

108. Plaintiff returned to full duty in August 2022.
109. Immediately after returning to full duty, Plaintiff is again assigned to assignments that would prevent him from earning activity.
110. Plaintiff was also denied overtime on the basis of his race.
111. Specifically, Plaintiff in 2022 earned only \$2,342 in overtime.
112. Contrarily, white officers Nelms earned \$25,185 in overtime and Bisogno earned \$28,847 in overtime in 2022.
113. White comparator Gregory Bricca earned \$31,636 in overtime in 2022, \$29,294 more than Plaintiff.
114. White comparator Dragan Kacanski earned \$29,771 in overtime in 2022, \$27,429 more than Plaintiff.
115. White comparator James Humpf earned \$32,091 in overtime in 2022, \$29,749 more than Plaintiff.
116. White comparator Jeffrey Cattani earned \$36,887 in overtime in 2022, \$34,545 more than Plaintiff.
117. White comparator Vincenzo Rallo earned \$41,708 in overtime in 2022, \$39,366 more than Plaintiff.
118. Plaintiff earned between \$25,000 and \$40,000 a year less than similarly situated white colleagues.
119. Plaintiff is similarly situated to his white colleagues in every material way except for his race, national origin, and religion.
120. Plaintiff is forced to earn tens of thousands of dollars in less income a year due to his race,

national origin, and religion.

121. In addition, to lost income due to his race, national origin and religion, Plaintiff is also losing pension benefits as a result of his lower pay.
122. Plaintiff, when he reaches his 20th year of service earns his full pension which give or take is half of his highest salary.
123. Plaintiff, as a result of his race, national origin, and religion, will earn approximately \$15,000 less a year in pension benefits compared to his white colleague Bisogno.
124. Plaintiff will be approximately 52 years old when he retires.
125. With a life expectancy of 78, Plaintiff, over the course of his lifetime, will earn \$390,000 less than Bisogno due to his race, national origin, and religion.
126. Plaintiff filed a formal complaint with OEE0 in August 2022.
127. Immediately after filing the OEE0, it becomes well known throughout PSA 2.
128. Plaintiff meets with OEE0 in September 2022.
129. On October 19, 2022, Plaintiff is assigned to a fix post near a project building.
130. During his tour, Plaintiff and his partner took a break to use the bathroom in the management office.
131. When Plaintiff is coming out of the office, Defendant TRAN is standing at Plaintiff's post.
132. Defendant TRAN proceeds to give Plaintiff a command discipline for using the bathroom during his tour.
133. This was done in retaliation for Plaintiff's complaint of discrimination as officers are allowed to use the bathroom while they are working.
134. Plaintiff subsequently had the command discipline adjudicated.
135. During the adjudication of this command discipline with Integrity Control Officer Anthony

- Scapicchio, Scapicchio acknowledges that Plaintiff has a pending complaint of discrimination against Defendant TRAN who is the one who issued the discipline.
136. Despite this clear conflict, Plaintiff is docked four (4) hours pay for this alleged infraction by Scapicchio.
137. Following the retaliation, Plaintiff again complained to OEE0 about the treatment.
138. In 2022, Plaintiff applied for a position within One Police Plaza which was denied.
139. Plaintiff also again tried to apply to the Crime team, neighborhood coordinator position and domestic violence unit.
140. Plaintiff was again denied due to his race, national origin, and religion.
141. In December 2022, Plaintiff received a negative performance evaluation for the year 2022.
142. This score was not reflective of Plaintiff's performance and was given to him for discriminatory and retaliatory reasons.
143. As a result of this negative evaluation, Plaintiff was barred from applying to several lucrative positions within PSA 2 since his evaluation score was below the required minimum score to apply.
144. These positions include but are not limited to the Anti- Crime team, domestic violence unit, field intelligence officer, and the crime analysis unit.
145. These specialized positions come with dramatic increases of overtime.
146. Specifically, officers within PSA 2 who are assigned to these units earn as much as \$50,000 more a year in income a year compared to plaintiff.
147. Plaintiff is denied this benefit due to his race, religion, and national origin.
148. The harassment of Plaintiff continued throughout the rest of 2022 and 2023.
149. Plaintiff, at all times herein, was treated less well due to his race, national origin, and religion.

150. Plaintiff was forced to work in a hostile work environment due to his race, national origin, and religion.
151. Plaintiff throughout the remainder of 2022 and 2023 was regularly called derogatory names by Defendant TRAN.
152. Throughout this time, Plaintiff is repeatedly denied benefits given to other non-Muslim employees.
153. Plaintiff is denied a motor vehicle, denied a partner, and rarely receives overtime.
154. Non-Muslim employees are afforded these benefits whenever they like.
155. In June 2023, OEE0 substantiated Plaintiff's complaints of discrimination against Defendant TRAN.
156. After Defendant TRAN was found to have discriminated against Plaintiff he was transferred from PSA 2.
157. After determining that Defendant TRAN discriminated against Plaintiff, Defendant TRAN was demoted from Sergeant to police officer on September 6, 2023.
158. Defendant TRAN is currently facing charges and specifications for his discriminatory treatment of Plaintiff which to date are pending and awaiting adjudication.
159. Throughout 2021 through the present date, Plaintiff has repeatedly tried to transfer from PSA 2 to get away from the discriminatory treatment,
160. Specifically, Plaintiff applied for transfers to PSA 9, PSA 4, Transit District 20, Personnel, Transit District 33, and numerous other places.
161. Plaintiff has been denied a transfer at every turn.
162. Plaintiff is told that he is denied these transfers due to lack of manpower in PSA 2.
163. These excuses are pretextual as Plaintiff is forced to watch other police officers be approved

for and ultimately do transfer out of the command.

164. These officers often have less time on than Plaintiff yet receive their lucrative transfers.

165. Specifically, Officer Smith (Black Woman with only two years seniority) was allowed to transfer out of the command to as was Chinese Asian woman Lee.

166. Plaintiff is similarly situated to these employees but were denied benefits of employment due to his south Asian race, national origin, and religion.

167. In fact, both of these employees applied for transfer after Plaintiff.

168. These comparators were granted their transfer request whereas Plaintiff is forced to stay in PSA 2.

169. This refusal to transfer Plaintiff is in retaliation for his complaint of discrimination.

170. As a result of the Defendants refusal to transfer Plaintiff he has lost tens of thousands of dollars in lost income.

171. Non-South Asian, Non-Bangladeshi and non-Muslim police officers are regularly given preferred posts, vehicles and overtime that is not readily available to the officers like Plaintiff in the command.

172. Plaintiff is denied these benefits due to his race, national origin, and religion.

173. Plaintiff throughout his time at PSA 2 is given a disproportionate number of assignments which prevent Plaintiff from getting the requisite activity to remain on par with the other officers in the command.

174. These include but are not limited to prisoner or hospital transports and fixed posts.

175. As a result of not spending as much time on patrol as his Non-South Asian, Non-Bangladeshi and non-Muslim Colleagues, Plaintiff needs to work twice as hard to maintain numbers on par with the Non-South Asian, Non-Bangladeshi and non-Muslim officers in the command.

176. It is well known that police officers within the NYPD are judged based on the number of arrests they effectuate and summonses they issue as compared to their peers.
177. These peers to whom an officer is compared consists of other employees assigned to their command.
178. As a matter of practice, assignments are to be given on a rotating basis to ensure that every employee within the Command is assigned a proportionate number of assignments to earn activity.
179. If for some reason an officer is given a disproportionate number of assignments which prevent him from achieving activity, then these assignments should be factored into their annual evaluation.
180. A well-known manner in which officers are discriminated against within the NYPD, including Plaintiff herein, is by assigning them a disproportionate number of tours which prevent them from earning activity and then comparing them to their peers who have the normal number of tours on patrol.
181. For example, Plaintiff is lucky to have 10 tours of patrol in every month in which he works.
182. Plaintiff's Non-South Asian, Non-Bangladeshi and non-Muslim counterparts against whom he is judged, regularly have 20 tours for that same month.
183. Nevertheless, even with disparate application of assignments, Plaintiff is evaluated against his Non-South Asian, Non-Bangladeshi and non-Muslim peers as if they had equal amounts of time on patrol.
184. As such Plaintiff, has to earn twice the amount of activity in half the tours in order to stay on par with his Non-South Asian, Non-Bangladeshi and non-Muslim colleagues.
185. As a result of these lower evaluations, Plaintiff is unable to earn income at the same level as

- his Non-South Asian, Non-Bangladeshi and non-Muslim colleagues.
186. These Non-South Asian, Non-Bangladeshi and non-Muslim police officers who received higher evaluations than Plaintiff as a result of the disparate application of assignments include but are not limited to Officers Nelms, Robinson, Bricca, Kacanski, Kalwa, Hernandez, Rallo, and Figueroa.
187. Despite this constant push to bring in activity, Plaintiff is given assignments which make it nearly impossible for him to stay on track with Non-South Asian, Non-Bangladeshi and non-Muslim officers who are assigned regular patrol.
188. Plaintiff, as a result, receives lower evaluations compared to his Non-South Asian, Non-Bangladeshi and non-Muslim colleagues despite performing on par or better than they do given the assignments he is given.
189. This disparate application of assignments results in negative evaluation scores are pretextual for discrimination.
190. Plaintiff when factoring in his assignments should have earned evaluations which exceed expectations.
191. As a result of these negative evaluations, Plaintiff has been denied economic opportunities within the Police department.
192. These economic opportunities include but are not limited to promotion to detective, specialized units and/or overtime pay.
193. Plaintiff has not been placed in an investigatory track to be promoted to detective nor has he received the discretionary promotion to detective as a result of his negative evaluations.
194. Further, Plaintiff has been denied upward mobility within the NYPD as a result of his negative evaluations.

195. As a result of these negative evaluations, Plaintiff is precluded from applying for and obtaining more lucrative specialized units within the NYPD which afford officers greater opportunities for overtime and provides them with greater opportunities to be promoted to Detective.
196. The discrimination based on race which Plaintiff is subjected is not limited to PSA 2.
197. The Defendant CITY OF NEW YORK have a pattern and practice of discriminating against Asian police officers.
198. Asians make up 10.9% of employees of the NYPD.
199. Asians make up 12.1% of police officers.
200. Despite making up 10.9% of the total employee and 12.1% of police officers, Asians make up just 4.4% of 3rd Grade Detective.
201. The promotion to detective is not based on a civil service examination but is rather based on whether an officer is selected for promotion.
202. As a result of the discretionary nature of these promotions, the demographics of detective should match those of a police officer.
203. Unfortunately, the Defendants have a pattern and practice of denying Asian police officers the opportunity to be promoted to detective on par with their non-Asian colleagues.
204. Specifically, the adverse impact report Asian employees are promoted to detective at over two standard deviations lower than non-Asian employees.
205. The promotion to detective comes with an increase in salary of approximately \$25,000.
206. As a result of the Defendants discriminatory practices across the board, Asian police officers earn significantly less than non-Asian employees.
207. Plaintiff suffered several adverse employment actions as a result of his race.

208. Plaintiff suffered several adverse employment actions as a result of his national origin.
209. Plaintiff suffered several adverse employment actions as a result of his religion.
210. Plaintiff suffered several adverse employment actions in retaliation for lawfully protected complaints of discrimination.
211. Plaintiff believes that the adverse employment actions were a direct result of Plaintiff's skin color and national origin but at the very least, these protected characteristics played a factor in the adverse employment actions taken against him.
212. The Defendants were aware of the discriminatory treatment toward Plaintiff of Defendant TRAN yet failed to take action to prevent said discriminatory treatment.
213. The Defendant CITY is strictly liable for these actions and inactions pursuant to New York State Human Rights Law §8-107(13)(b).
214. Upon information and belief, Plaintiff is being retaliated against in an effort of the Defendants herein to justify their unlawful actions.
215. That at all times herein the Defendant CITY OF NEW YORK, knew or should have known of the discriminatory and retaliatory actions taken toward Plaintiff yet failed to intervene to prevent these unlawful actions against Plaintiff.
216. The Defendants herein, if properly trained, would not have taken the discriminatory and retaliatory actions towards Plaintiff.
217. Plaintiff at all times herein was fit for duty as a Police officer and detective of the Defendant CITY OF NEW YORK.
218. As a result of denial of employment by the Defendants herein, Plaintiff lost substantial income in promotional opportunities, overtime, salary, and pension benefits as a result of the unlawful actions of the Defendants herein.

219. Plaintiff alleges that the actions of the defendants herein caused him to suffer severe and pervasive emotional distress as a result of that hostile environment.
220. Plaintiff alleges that the defendants herein had actual knowledge of the discriminatory and retaliatory treatment of Plaintiff herein and failed to intercede to prevent the unlawful behavior.
221. Plaintiff alleges defendant CITY OF NEW YORK engaged in various unlawful employment actions against Plaintiff in retaliation for his lawfully protected complaints of race discrimination.
222. Plaintiff suffered several adverse employment actions as a result of her gender.
223. Plaintiff suffered several adverse employment actions in retaliation for lawfully protected complaints of discrimination.
224. Plaintiff believes that the adverse employment actions were a direct result of Plaintiff's race and national origin but at the very least, these protected characteristics played a factor in the adverse employment actions taken against him.
225. These adverse employment actions include but are no way limited to, improper discipline, punishment, transfers, highway therapy, disparate assignment of post, inaccurate performance evaluations, denial of overtime, denial of specialized units and failure to promote.
226. Plaintiff has been subjected to a hostile work environment as a result of the severe and pervasive discriminatory and retaliatory conduct as described herein.
227. The white officers described herein as receiving favorable assignments, evaluations, overtime, and other benefits compared to minority officers are similarly situated to those minority officers in every way and receive these benefits on the basis of their race.

228. The Defendant, as a matter of practice, fails to train, or supervise its employees to ensure that they are in compliance with the law or their own internal regulations which require a cooperative dialogue.
229. The Defendant knew, or should have known, that this policy and unlawful acts were ongoing and failed to properly supervise or train their employees related to prevent these unlawful acts from occurring to its employees, including Plaintiff.
230. At all times herein Plaintiff was treated worse than similarly situated employees because of his race, national origin, and religion.
231. At all times herein Plaintiff was treated worse than similarly situated employees in retaliation for lawfully protected complaints of discrimination.

COUNT I
RACE DISCRIMINATION
IN VIOLATION OF NEW YORK CITY
ADMINISTRATIVE CODE § 8-107

232. Plaintiff re-alleges and incorporates all paragraphs contained herein by reference to this Count.
233. Plaintiff alleges that New York City Administrative Code § 8-107, makes it unlawful to deny employment on the basis of his race.
234. Plaintiff performed his job duties satisfactorily which is reflected in Plaintiffs stellar performance evaluations. Nevertheless, Defendant denied Plaintiff benefits of employment, including all favorable conditions and emoluments thereof because of Plaintiff's race, created a hostile work environment by the conduct of Defendants CITY OF NEW YORK AND TRAN. The wrongful conduct was condoned by the Defendant CITY OF NEW YORK.

235. Defendant CITY OF NEW YORK discriminated against Plaintiff, as described herein, because he is Asian.
236. Defendant TRAN discriminated against Plaintiff, as described herein, because he is Southern Asian.
237. Defendant's actions were taken under circumstances giving rise to an inference of discrimination.
238. The direct and proximate cause of Defendant's recklessness and negligence, Plaintiff was denied a promotion, suffered lost past and future wages, lost other valuable benefits and emoluments of employment, hurt his credit rating, lost career, and business opportunities, suffered severe damage to his good name and reputation, was denied overtime, and endured severe emotional pain and trauma, all to his detriment in an amount to be determined at trial.
239. Plaintiff alleges Defendants CITY OF NEW YORK and TRAN, engaged in various unlawful employment actions against Plaintiff based on his race.
240. Plaintiff alleges that as a direct and proximate result of the unlawful employment practices of Defendants CITY OF NEW YORK and TRAN, Plaintiff incurred significant legal costs, back pay, front pay, compensatory damages, punitive damages, attorneys' fees, emotional distress, and damage to his personal and professional reputation in an amount to be determined at trial.

COUNT II
RACE DISCRIMINATION
HOSTILE WORK ENVIRONMENT
IN VIOLATION OF NEW YORK CITY
ADMINISTRATIVE CODE § 8-107

241. Plaintiff re-alleges and incorporates all paragraphs contained herein by reference to this Count.

242. Plaintiff alleges that New York City Administrative Code § 8-107, makes it unlawful to deny employment on the basis of his race.
243. Plaintiff performed his job duties satisfactorily which is reflected in Plaintiff's stellar performance evaluations. Nevertheless, Defendant denied Plaintiff benefits of employment, including all favorable conditions and emoluments thereof because of Plaintiff's race, created a hostile work environment by the conduct of Defendants CITY OF NEW YORK and TRAN, and without any non-discriminatory basis thereof. The wrongful conduct was condoned by the Defendant CITY OF NEW YORK.
244. Defendant's actions were taken under circumstances giving rise to an inference of discrimination.
245. Defendant CITY OF NEW YORK discriminated against Plaintiff, as described herein, because he is Asian.
246. Defendant TRAN discriminated against Plaintiff, as described herein, because he is Southern Asian.
247. Defendant subjected Plaintiff to a materially adverse and hostile work environment by subjecting him, day after day, month after month, without supervisory intervention to discrimination and retaliation based his race.
248. The actions of the Defendant towards Plaintiff were severe and pervasive.
249. The direct and proximate cause of Defendant's recklessness and negligence, Plaintiff was denied a promotion, suffered lost past and future wages, lost other valuable benefits and emoluments of employment, hurt his credit rating, lost career, and business opportunities, suffered severe damage to his good name and reputation, was denied overtime, and endured severe emotional pain and trauma, all to his detriment in an amount to be determined at trial.

250. Plaintiff alleges Defendants CITY OF NEW YORK and TRAN, engaged in various unlawful employment actions against Plaintiff based on his race.
251. Plaintiff alleges that as a direct and proximate result of the unlawful employment practices, including subjecting Plaintiff to a hostile work environment, of Defendants CITY OF NEW YORK and TRAN, Plaintiff incurred significant legal costs, back pay, front pay, compensatory damages, punitive damages, attorneys' fees, emotional distress, and damage to his personal and professional reputation in an amount to be determined at trial.

COUNT III
NATIONAL ORIGIN DISCRIMINATION
IN VIOLATION OF NEW YORK CITY
ADMINISTRATIVE CODE § 8-107

252. Plaintiff re-alleges and incorporates all paragraphs contained herein by reference to this Count.
253. Plaintiff alleges that New York City Administrative Code § 8-107, makes it unlawful to deny employment on the basis of his National Origin.
254. Plaintiff performed his job duties satisfactorily which is reflected in Plaintiff's stellar performance evaluations. Nevertheless, Defendant denied Plaintiff benefits of employment, including all favorable conditions and emoluments thereof because of Plaintiff's National Origin, created a hostile work environment by the conduct of Defendants CITY OF NEW YORK AND TRAN.. The wrongful conduct was condoned by the Defendant CITY OF NEW YORK.
255. Defendant's actions were taken under circumstances giving rise to an inference of discrimination.
256. The direct and proximate cause of Defendant's recklessness and negligence, Plaintiff was denied a promotion, suffered lost past and future wages, lost other valuable benefits and

emoluments of employment, hurt his credit rating, lost career, and business opportunities, suffered severe damage to his good name and reputation, was denied overtime, and endured severe emotional pain and trauma, all to his detriment in an amount to be determined at trial.

257. Plaintiff alleges Defendants CITY OF NEW YORK and TRAN, engaged in various unlawful employment actions against Plaintiff based on his National Origin.
258. Plaintiff alleges that as a direct and proximate result of the unlawful employment practices of Defendants CITY OF NEW YORK and TRAN, Plaintiff incurred significant legal costs, back pay, front pay, compensatory damages, punitive damages, attorneys' fees, emotional distress, and damage to his personal and professional reputation in an amount to be determined at trial.

COUNT IV
NATIONAL ORIGIN DISCRIMINATION
HOSTILE WORK ENVIRONMENT
IN VIOLATION OF NEW YORK CITY
ADMINISTRATIVE CODE § 8-107

259. Plaintiff re-alleges and incorporates all paragraphs contained herein by reference to this Count.
260. Plaintiff alleges that New York City Administrative Code § 8-107, makes it unlawful to deny employment on the basis of his National Origin.
261. Plaintiff performed his job duties satisfactorily which is reflected in Plaintiffs stellar performance evaluations. Nevertheless, Defendant denied Plaintiff benefits of employment, including all favorable conditions and emoluments thereof because of Plaintiff's National Origin, created a hostile work environment by the conduct of Defendants CITY OF NEW YORK and TRAN, and without any non-discriminatory basis thereof. The wrongful conduct was condoned by the Defendant CITY OF NEW YORK.

262. Defendant's actions were taken under circumstances giving rise to an inference of discrimination.
263. Defendant subjected Plaintiff to a materially adverse and hostile work environment by subjecting him, day after day, month after month, without supervisory intervention to discrimination and retaliation based his National Origin.
264. The actions of the Defendant towards Plaintiff were severe and pervasive.
265. The direct and proximate cause of Defendant's recklessness and negligence, Plaintiff was denied a promotion, suffered lost past and future wages, lost other valuable benefits and emoluments of employment, hurt his credit rating, lost career, and business opportunities, suffered severe damage to his good name and reputation, was denied overtime, and endured severe emotional pain and trauma, all to his detriment in an amount to be determined at trial.
266. Plaintiff alleges Defendants CITY OF NEW YORK and TRAN, engaged in various unlawful employment actions against Plaintiff based on his National Origin.
267. Plaintiff alleges that as a direct and proximate result of the unlawful employment practices, including subjecting Plaintiff to a hostile work environment, of Defendants CITY OF NEW YORK and TRAN, Plaintiff incurred significant legal costs, back pay, front pay, compensatory damages, punitive damages, attorneys' fees, emotional distress, and damage to his personal and professional reputation in an amount to be determined at trial.

COUNT V
RELIGION DISCRIMINATION
IN VIOLATION OF NEW YORK CITY
ADMINISTRATIVE CODE § 8-107

268. Plaintiff re-alleges and incorporates all paragraphs contained herein by reference to this Count.
269. Plaintiff alleges that New York City Administrative Code § 8-107, makes it unlawful to deny

employment on the basis of his religion.

270. Plaintiff performed his job duties satisfactorily which is reflected in Plaintiffs stellar performance evaluations. Nevertheless, Defendant denied Plaintiff benefits of employment, including all favorable conditions and emoluments thereof because of Plaintiff's religion, created a hostile work environment by the conduct of Defendants CITY OF NEW YORK AND TRAN.. The wrongful conduct was condoned by the Defendant CITY OF NEW YORK.
271. Defendant's actions were taken under circumstances giving rise to an inference of discrimination.
272. The direct and proximate cause of Defendant's recklessness and negligence, Plaintiff was denied a promotion, suffered lost past and future wages, lost other valuable benefits and emoluments of employment, hurt his credit rating, lost career, and business opportunities, suffered severe damage to his good name and reputation, was denied overtime, and endured severe emotional pain and trauma, all to his detriment in an amount to be determined at trial.
273. Plaintiff alleges Defendants CITY OF NEW YORK and TRAN, engaged in various unlawful employment actions against Plaintiff based on his religion.
274. Plaintiff alleges that as a direct and proximate result of the unlawful employment practices of Defendants CITY OF NEW YORK and TRAN, Plaintiff incurred significant legal costs, back pay, front pay, compensatory damages, punitive damages, attorneys' fees, emotional distress, and damage to his personal and professional reputation in an amount to be determined at trial.

COUNT VI
RELIGION DISCRIMINATION
HOSTILE WORK ENVIRONMENT
IN VIOLATION OF NEW YORK CITY

ADMINISTRATIVE CODE § 8-107

275. Plaintiff re-alleges and incorporates all paragraphs contained herein by reference to this Count.
276. Plaintiff alleges that New York City Administrative Code § 8-107, makes it unlawful to deny employment on the basis of his religion.
277. Plaintiff performed his job duties satisfactorily which is reflected in Plaintiffs stellar performance evaluations. Nevertheless, Defendant denied Plaintiff benefits of employment, including all favorable conditions and emoluments thereof because of Plaintiff's religion, created a hostile work environment by the conduct of Defendants CITY OF NEW YORK and TRAN, and without any non-discriminatory basis thereof. The wrongful conduct was condoned by the Defendant CITY OF NEW YORK.
278. Defendant's actions were taken under circumstances giving rise to an inference of discrimination.
279. Defendant subjected Plaintiff to a materially adverse and hostile work environment by subjecting him, day after day, month after month, without supervisory intervention to discrimination and retaliation based his religion.
280. The actions of the Defendant towards Plaintiff were severe and pervasive.
281. The direct and proximate cause of Defendant's recklessness and negligence, Plaintiff was denied a promotion, suffered lost past and future wages, lost other valuable benefits and emoluments of employment, hurt his credit rating, lost career, and business opportunities, suffered severe damage to his good name and reputation, was denied overtime, and endured severe emotional pain and trauma, all to his detriment in an amount to be determined at trial.
282. Plaintiff alleges Defendants CITY OF NEW YORK and TRAN, engaged in various unlawful

employment actions against Plaintiff based on his race.

283. Plaintiff alleges that as a direct and proximate result of the unlawful employment practices, including subjecting Plaintiff to a hostile work environment, of Defendants CITY OF NEW YORK and TRAN, Plaintiff incurred significant legal costs, back pay, front pay, compensatory damages, punitive damages, attorneys' fees, emotional distress, and damage to his personal and professional reputation in an amount to be determined at trial.

COUNT VII
RETALIATION
IN VIOLATION OF NEW YORK CITY
ADMINISTRATIVE CODE § 8-107

284. Plaintiff re-alleges and incorporates all paragraphs contained herein by reference to this Count.
285. Plaintiff alleges that New York City Administrative Code § 8-107, makes it unlawful to deny employment in retaliation for Plaintiff engaging in protected activity.
286. Plaintiff engaged in protected activity when he complained of discrimination related to his race, skin color, religion, and national origin.
287. Plaintiff was retaliated against by the Defendants CITY OF NEW YORK and TRAN, as a result of his engagement in protected activity.
288. Defendant's actions were taken under circumstances giving rise to an inference of retaliation.
289. The direct and proximate cause of Defendant's recklessness and negligence, Plaintiff was denied a promotion, suffered lost past and future wages, lost other valuable benefits and emoluments of employment, hurt his credit rating, lost career, and business opportunities, suffered severe damage to his good name and reputation, was denied overtime, and endured severe emotional pain and trauma, all to his detriment in an amount to be determined at trial.
290. Plaintiff alleges Defendants CITY OF NEW YORK and TRAN, engaged in various unlawful

employment actions against Plaintiff in retaliation for Plaintiff's lawfully protected complaints.

291. Plaintiff alleges that as a direct and proximate result of the unlawful employment practices of Defendants CITY OF NEW YORK and TRAN, Plaintiff incurred significant legal costs, back pay, front pay, compensatory damages, punitive damages, attorneys' fees, emotional distress, and damage to his personal and professional reputation in an amount to be determined at trial.

COUNT VIII
RACE DISCRIMINATION
STRICT LIABILITY IN VIOLATION OF
NEW YORK CITY ADMINISTRATIVE CODE § 8-107(13)(b)

292. Plaintiff re-alleges and incorporates all paragraphs contained herein by reference to this Count.
293. Plaintiff alleges that New York City Administrative Code § 8-107 (13) (b), makes a Defendant strictly liable for the discriminatory acts of managers and supervisors against a subordinate employee, such as the Plaintiff herein.
294. Plaintiff was subjected to repeated race discrimination following the lawful complaints made by Plaintiff.
295. The Defendant was aware of the actions of managers and supervisors, including but failed to take corrective remedial action which forced Plaintiff to be subjected to future discrimination.
296. The Defendant failed to exercise reasonable diligence to prevent such discriminatory conduct.
297. Plaintiff performed his job duties satisfactorily which is reflected in Plaintiff's stellar performance evaluations. Nevertheless, Defendant denied Plaintiff benefits of employment,

including all favorable conditions and emoluments thereof because of Plaintiff's race, created a hostile work environment by the conduct of Defendants CITY OF NEW YORK and TRAN, and without any non-discriminatory basis thereof. The wrongful conduct was condoned by the Defendant CITY OF NEW YORK.

298. Defendant's actions were taken under circumstances giving rise to an inference of discrimination.
299. The direct and proximate cause of Defendant's recklessness and negligence, Plaintiff was denied a promotion, suffered lost past and future wages, lost other valuable benefits and emoluments of employment, hurt his credit rating, lost career, and business opportunities, suffered severe damage to his good name and reputation, was denied overtime, and endured severe emotional pain and trauma, all to his detriment in an amount to be determined at trial.
300. Plaintiff alleges Defendants CITY OF NEW YORK and TRAN, engaged in various unlawful employment actions against Plaintiff based on his race.
301. The Defendant CITY OF NEW YORK is vicariously liable for the actions of their employees as described herein as they held a supervisory position to Plaintiff wherein, they exercised managerial and supervisory responsibility.
302. The Defendant CITY OF NEW YORK is vicariously liable for the actions of their employees as described herein as they held a supervisory position to Plaintiff wherein, they exercised managerial and supervisory responsibility.
303. The Defendant CITY OF NEW YORK is vicariously liable for the actions of their employees as described herein as they has actual and constructive notice of the discriminatory and retaliatory conduct as described herein yet failed to exercise reasonable diligence to prevent it.

304. Plaintiff alleges that as a direct and proximate result of the unlawful employment practices of Defendants CITY OF NEW YORK and TRAN, Plaintiff incurred significant legal costs, back pay, front pay, compensatory damages, punitive damages, attorneys' fees, emotional distress, and damage to his personal and professional reputation in an amount to be determined at trial.
305. As a result of Defendant's willful actions, they are strictly liable to Plaintiff for their actions.

COUNT IX
NATIONAL ORIGIN DISRIMINATION
STRICT LIABILITY IN VIOLATION OF
NEW YORK CITY ADMINISTRATIVE CODE § 8-107(13)(b)

306. Plaintiff re-alleges and incorporates all paragraphs contained herein by reference to this Count.
307. Plaintiff alleges that New York City Administrative Code § 8-107 (13) (b), makes a Defendant strictly liable for the discriminatory acts of managers and supervisors against a subordinate employee, such as the Plaintiff herein.
308. Plaintiff was subjected to repeated National Origin discrimination following the lawful complaints made by Plaintiff.
309. The Defendant was aware of the actions of managers and supervisors, including but failed to take corrective remedial action which forced Plaintiff to be subjected to future discrimination.
310. The Defendant failed to exercise reasonable diligence to prevent such discriminatory conduct.
311. Plaintiff performed his job duties satisfactorily which is reflected in Plaintiffs stellar performance evaluations. Nevertheless, Defendant denied Plaintiff benefits of employment,

including all favorable conditions and emoluments thereof because of Plaintiff's National Origin, created a hostile work environment by the conduct of Defendants CITY OF NEW YORK and TRAN, and without any non-discriminatory basis thereof. The wrongful conduct was condoned by the Defendant CITY OF NEW YORK.

312. Defendant's actions were taken under circumstances giving rise to an inference of discrimination.
313. The direct and proximate cause of Defendant's recklessness and negligence, Plaintiff was denied a promotion, suffered lost past and future wages, lost other valuable benefits and emoluments of employment, hurt his credit rating, lost career, and business opportunities, suffered severe damage to his good name and reputation, was denied overtime, and endured severe emotional pain and trauma, all to his detriment in an amount to be determined at trial.
314. Plaintiff alleges Defendants CITY OF NEW YORK and TRAN, engaged in various unlawful employment actions against Plaintiff based on his National Origin.
315. The Defendant CITY OF NEW YORK is vicariously liable for the actions of their employees as described herein as they held a supervisory position to Plaintiff wherein, they exercised managerial and supervisory responsibility.
316. The Defendant CITY OF NEW YORK is vicariously liable for the actions of their employees as described herein as they held a supervisory position to Plaintiff wherein, they exercised managerial and supervisory responsibility.
317. The Defendant CITY OF NEW YORK is vicariously liable for the actions of their employees as described herein as they has actual and constructive notice of the discriminatory and retaliatory conduct as described herein yet failed to exercise reasonable diligence to prevent it.

318. Plaintiff alleges that as a direct and proximate result of the unlawful employment practices of Defendants CITY OF NEW YORK and TRAN, Plaintiff incurred significant legal costs, back pay, front pay, compensatory damages, punitive damages, attorneys' fees, emotional distress, and damage to his personal and professional reputation in an amount to be determined at trial.

319. As a result of Defendant's willful actions, they are strictly liable to Plaintiff for their actions.

COUNT X
RELIGIOUS DISCRIMINATION
STRICT LIABILITY IN VIOLATION OF
NEW YORK CITY ADMINISTRATIVE CODE 8-107 (13)(b)

320. Plaintiff re-alleges and incorporates all paragraphs contained herein by reference to this Count.

321. Plaintiff alleges that New York City Administrative Code § 8-107 (13) (b), makes a Defendant strictly liable for the discriminatory acts of managers and supervisors against a subordinate employee, such as the Plaintiff herein.

322. Plaintiff was subjected to repeated religious discrimination following the lawful complaints made by Plaintiff.

323. The Defendant was aware of the actions of managers and supervisors, including but failed to take corrective remedial action which forced Plaintiff to be subjected to future discrimination.

324. The Defendant failed to exercise reasonable diligence to prevent such discriminatory conduct.

325. Plaintiff performed his job duties satisfactorily which is reflected in Plaintiff's stellar performance evaluations. Nevertheless, Defendant denied Plaintiff benefits of employment, including all favorable conditions and emoluments thereof because of Plaintiff's religion,

created a hostile work environment by the conduct of Defendants CITY OF NEW YORK and TRAN, and without any non-discriminatory basis thereof. The wrongful conduct was condoned by the Defendant CITY OF NEW YORK.

326. Defendant's actions were taken under circumstances giving rise to an inference of discrimination.
327. The direct and proximate cause of Defendant's recklessness and negligence, Plaintiff was denied a promotion, suffered lost past and future wages, lost other valuable benefits and emoluments of employment, hurt his credit rating, lost career, and business opportunities, suffered severe damage to his good name and reputation, was denied overtime, and endured severe emotional pain and trauma, all to his detriment in an amount to be determined at trial.
328. Plaintiff alleges Defendants CITY OF NEW YORK and TRAN, engaged in various unlawful employment actions against Plaintiff based on his religion.
329. The Defendant CITY OF NEW YORK is vicariously liable for the actions of their employees as described herein as they held a supervisory position to Plaintiff wherein, they exercised managerial and supervisory responsibility.
330. The Defendant CITY OF NEW YORK is vicariously liable for the actions of their employees as described herein as they held a supervisory position to Plaintiff wherein, they exercised managerial and supervisory responsibility.
331. The Defendant CITY OF NEW YORK is vicariously liable for the actions of their employees as described herein as they has actual and constructive notice of the discriminatory and retaliatory conduct as described herein yet failed to exercise reasonable diligence to prevent it.
332. Plaintiff alleges that as a direct and proximate result of the unlawful employment practices

of Defendants CITY OF NEW YORK and TRAN, Plaintiff incurred significant legal costs, back pay, front pay, compensatory damages, punitive damages, attorneys' fees, emotional distress, and damage to his personal and professional reputation in an amount to be determined at trial.

333. As a result of Defendant's willful actions, they are strictly liable to Plaintiff for their actions.

COUNT XI
RETALIATION
STRICT LIABILITY IN VIOLATION OF
NEW YORK CITY ADMINISTRATIVE CODE § 8-107(13)(b)

334. Plaintiff re-alleges and incorporates all paragraphs contained herein by reference to this Count.
335. Plaintiff alleges that New York City Administrative Code § 8-107 (13) (b), makes a Defendant strictly liable for the acts of managers and supervisors against a subordinate employee, such as the Plaintiff herein.
336. Plaintiff was subjected to repeated retaliatory acts following the lawful complaints made by Plaintiff regarding skin color discrimination.
337. The Defendant was aware of the actions of managers and supervisors but failed to take corrective remedial action which forced Plaintiff to be subjected to future retaliation.
338. The Defendant failed to exercise reasonable diligence to prevent such retaliatory conduct.
339. Plaintiff performed his job duties satisfactorily which is reflected in Plaintiff's stellar performance evaluations. Nevertheless, Defendant denied Plaintiff benefits of employment, including all favorable conditions and emoluments thereof because of Plaintiff's race, created a hostile work environment by the conduct of Defendants CITY OF NEW YORK and TRAN, without any non-discriminatory basis thereof. The wrongful conduct was

condoned by the Defendant CITY OF NEW YORK.

340. Defendant's actions were taken under circumstances giving rise to an inference of retaliation.
341. The direct and proximate cause of Defendant's recklessness and negligence, Plaintiff was denied a promotion, suffered lost past and future wages, lost other valuable benefits and emoluments of employment, hurt his credit rating, lost career, and business opportunities, suffered severe damage to his good name and reputation, was denied overtime, and endured severe emotional pain and trauma, all to his detriment in an amount to be determined at trial.
342. The Defendant CITY OF NEW YORK is vicariously liable for the actions of their employees as described herein as they held a supervisory position to Plaintiff wherein, they exercised managerial and supervisory responsibility.
343. The Defendant CITY OF NEW YORK is vicariously liable for the actions of their employees as described herein as they held a supervisory position to Plaintiff wherein, they exercised managerial and supervisory responsibility.
344. The Defendant CITY OF NEW YORK is vicariously liable for the actions of their employees as described herein as they has actual and constructive notice of the discriminatory and retaliatory conduct as described herein yet failed to exercise reasonable diligence to prevent it.
345. As a result of Defendants', THE CITY OF NEW YORK, and TRAN, Individually, willful actions they are strictly liable to Plaintiff for their actions.

COUNT XII

NEW YORK CITY ADMINISTRATIVE CODE §8-502

346. Plaintiff re-alleges and incorporates all paragraphs contained herein by reference to this Count.

347. By reason thereof, Defendants CITY OF NEW YORK has violated New York City Administrative Code §8-502(a), and Plaintiff has been damaged in an amount to be determined at trial.

JURY TRIAL

348. Plaintiff demands a trial by jury of all issues in this action that are so triable.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully request that the Court:

- a. Injunctive relief for Plaintiff be promoted to detective.
- b. Injunctive relief to change the NYPD policy on discretionary promotions for Sergeants to make them more equitable;
- c. Award compensatory damages for the back pay, front pay, pain, suffering, emotional distress, loss of dignity, humiliation, and damages to reputation and livelihood endured by Plaintiff and all other damages afforded to Plaintiff by statute or otherwise in an amount to be determined at trial.
- d. Award Plaintiff punitive damages in an amount to be determined at trial New York City Human Rights Law Administrative Code §8-502(a).
- e. Find Defendants strictly liable pursuant to New York City Human Rights Law Administrative Code §8-107(13)(b).
- f. Award Plaintiff costs for this action and reasonably attorneys' fees, as provided for in New York City Human Rights Law Administrative Code §8-502 (f).
- g. All defendants herein are joint and severally liable for the actions of the any and all of the named Defendants herein.

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VERIFICATION

STATE OF NEW YORK)
COUNTY OF NEW YORK)

I, the undersigned, an attorney duly admitted to practice law in the State of New York, under penalties of perjury do affirm.

That I am the attorney of record for the plaintiff in the within matter and make this affirmation in accordance with CPLR 3020. I have read the within VERIFIED AMENDED COMPLAINT and know the contents thereof to be true to your affirmant's own knowledge, with the exception of those matters therein stated to be alleged upon information and belief. Your affirmant bases his belief regarding those matters upon the contents of the file and conversation with witnesses and the claimant.

This verification is made by your affirmant and not by the claimant for the following reason: The claimants resides in a different County than where your affirmant maintains an office.

Dated: New York, New York
November 2, 2023

_____/s/_____
JOHN SCOLA